



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd
Subject: UDC-23-120 | Cleveland & US 30 Zoning Map Amendment
Date: October 23, 2023

Background:

The item for consideration is a *Zoning Map Amendment (zone change)*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 10/23/2023
- Public Services Committee 11/7/2023
- Second reading 11/13/2023
- Public Services Committee 11/21/2023
- Third and final reading 11/27/2023

Planning Commission Recommendation:

The Planning Commission heard this item at their October 16, 2023 meeting and unanimously recommended the Governing Body approve this application.

The Planning Commission Staff report is attached and has not been changed.

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE CHANGING THE ZONING CLASSIFICATION FROM MUB MIXED-USE BUSINESS EMPHASIS TO CB COMMUNITY BUSINESS FOR LAND LOCATED AT LOT 2, BLOCK 1, SUNNYSIDE ADDITION, 10TH FILING."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner(s) of the property described herein has (have) applied for a zoning map amendment for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code ("UDC").

Section 2. That on October 2, 2023, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zoning map amendment that is the subject of this ordinance, and recommended approval of said zoning map amendment.

Section 3. That the Governing Body of the City of Cheyenne finds that the zoning map amendment that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved, and the zoning classification of the real property described as Lot 2, Block 1, Sunnyside Addition, 11th Filing, Cheyenne, Wyoming, is hereby changed to CB Community Business.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zoning map amendment as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
Wyoming Tribune-Eagle



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CITY OF CHEYENNE PLANNING COMMISSION

OCTOBER 2, 2023

STAFF REPORT

FILE: UDC-23-120: Cleveland and US 30 Zone Change

REQUEST: A request to rezone approximately 2.02 acres of land from MUB Mixed-use Business to CB Community Business.

LOCATION: North of Pershing Boulevard between Cleveland Avenue and US 30

AGENT: Shane Hansen

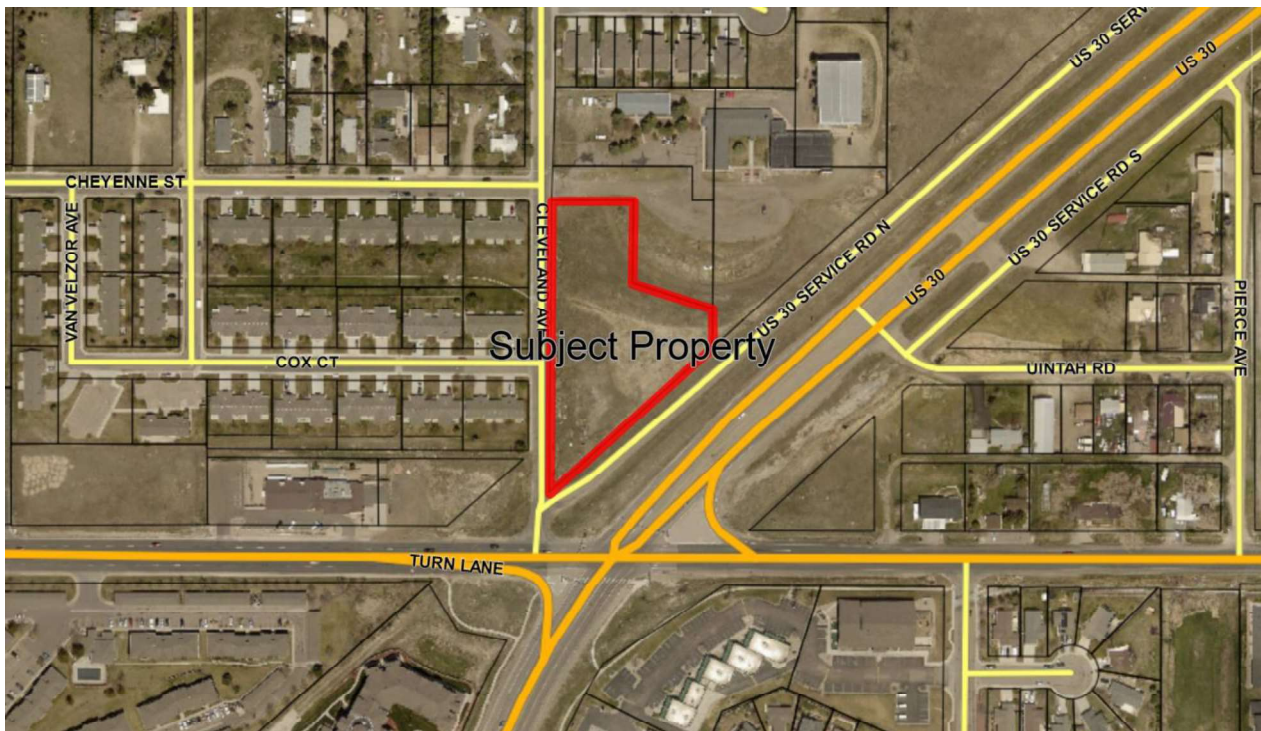
OWNER: Ramirez, Daniel Et Ux

ZONING: MUB Mixed-use Business

FUTURE LAND USE: Mixed-use Commercial

PURPOSE: Rezoning to CB to allow storage with fewer design standards.

PREPARED BY: Seth Lloyd, Senior Planner



RECOMMENDED MOTION:

Move to **approve** the rezoning of Lot 2, Block 1, Sunnyside Addition, 10th Filing to CB Community Business, noting that the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.1 Zoning Map Amendment
- UDC Article 5
- PlanCheyenne

BACKGROUND:

This zone change application proposes changing the zoning from MUB Mixed-use Business to CB Community Business. The land is currently vacant. The purpose of the proposed zone change is to allow for a storage use with more appropriate design standards.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning District	Land Use
Subject Site	Mixed-use Commercial	MUB Mixed-use Business	Vacant
North	Mixed-use Commercial	MUB	Assembly
South	Mixed-use Commercial	CB Community Business	Assorted commercial service uses
East	Mixed-use Commercial	MUB, CB	Vacant
West	Mixed-use Commercial	MUB	Residential (townhome)

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.2.1.d.1)

The Future Land Use designation for this property is Mixed-use Commercial. The Mixed-Use Commercial category is intended to promote a range of land uses, with primarily retail, office, light industrial, and live/work designed as an “activity center”. Parks, plazas and/or open space should also be part of the core of Mixed-Use Commercial areas.

Policies in the comprehensive plan encourage commercial development near activity centers, and the intersection of College and Pershing is considered an activity center by the plan.

The proposed zone change for the subject property **complies** with this review criterion.

- 2) The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas; (UDC 2.2.1.d.2)**

There is CB zoning to the south of this property. The surrounding area consists of a mix of different commercial, residential, assembly, and service uses. The CB zone would be compatible with the nearby properties as it is a commercial zone with slightly different standards than the MUB zone.

The proposed zone change for the subject property **complies** with this review criterion.

- 3) The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (UDC 2.2.1.d.3)**

The surrounding area better matches the expected development patterns of CB zoning. The MUB zone requires buildings to be set closer to the streets and have a certain amount of windows and other building design elements, whereas the CB zone pushes buildings further from the street and requires fewer building design elements. The CB zone is also meant for more vehicle-oriented areas which would be the case for US 30.

The proposed zone change for the subject property **complies** with this review criterion.

- 4) The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (UDC 2.2.1.d.4)**

This is in an area with an existing street network and which is constrained by WYDOT's access limitations on US 30. There are infill and regional transportation route limitations on the property no matter what zone is selected. The CB zone generally anticipates larger blocks and is better suited to the likely development patterns in this situation.

The proposed zone change for the subject property **complies** with this review criterion.

- 5) The ability of the application to support the Intent and Applicability statements of the proposed zoning district and achieve the Design Objectives of any specific standards. (UDC 2.2.1.d.5)**

The CB District is intended for Retail, Employment, Service and Civic uses that may serve a number of residential neighborhoods or other districts in meeting daily needs, discretionary needs, or other business functions. The district regulations are designed to encourage these uses, while also protecting the abutting and nearby areas.

The CB District is applicable in areas where moderate- or large-scale business uses are appropriate, specifically larger Mixed-use Commercial Activity Centers, Community/Regional Activity Centers, or Community Business areas of the Comprehensive Plan.

This property is close to US 30 and has a more low-density, spread-out development pattern, better meeting the Intent and design objectives of the CB zone, than those of the MUB zone.

The proposed zone change for the subject property **complies** with this review criterion.

- 6) The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options if any specific development proposed in association with the application is not executed after approval. (UDC 2.2.1.d.6)**

The specific proposal for this project is a storage facility. However if that project is not executed after approval, the CB zone offers a wide variety of potential auto-oriented uses at this site (including apartments).

The proposed zone change for the subject property **complies** with this review criterion.

- 7) The review and recommendations of other reviewing bodies. (UDC 2.2.1.d.7)**

No major concerns were raised by other reviewing bodies.

The proposed zone change for the subject property **complies** with this review criterion.

- 8) Whether the application will harm the public health, safety, or general welfare. (UDC 2.2.1.d.8)**

City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

The proposed zone change for the subject property **complies** with this review criterion.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

STAFF REVIEW:

Through the review process no comments were received.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.1.(d). The proposed CB zone is consistent with the comprehensive plan and is appropriate based on the existing conditions and potential development patterns for the area.

ALTERNATIVES:

1. Recommend approval of the zoning amendment as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the zoning amendment subject to conditions or modifications.

3. Recommend denial of the zoning amendment based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the zoning amendment until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

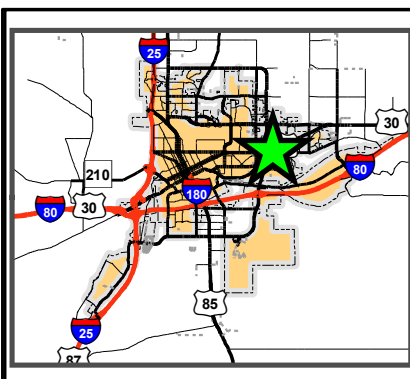
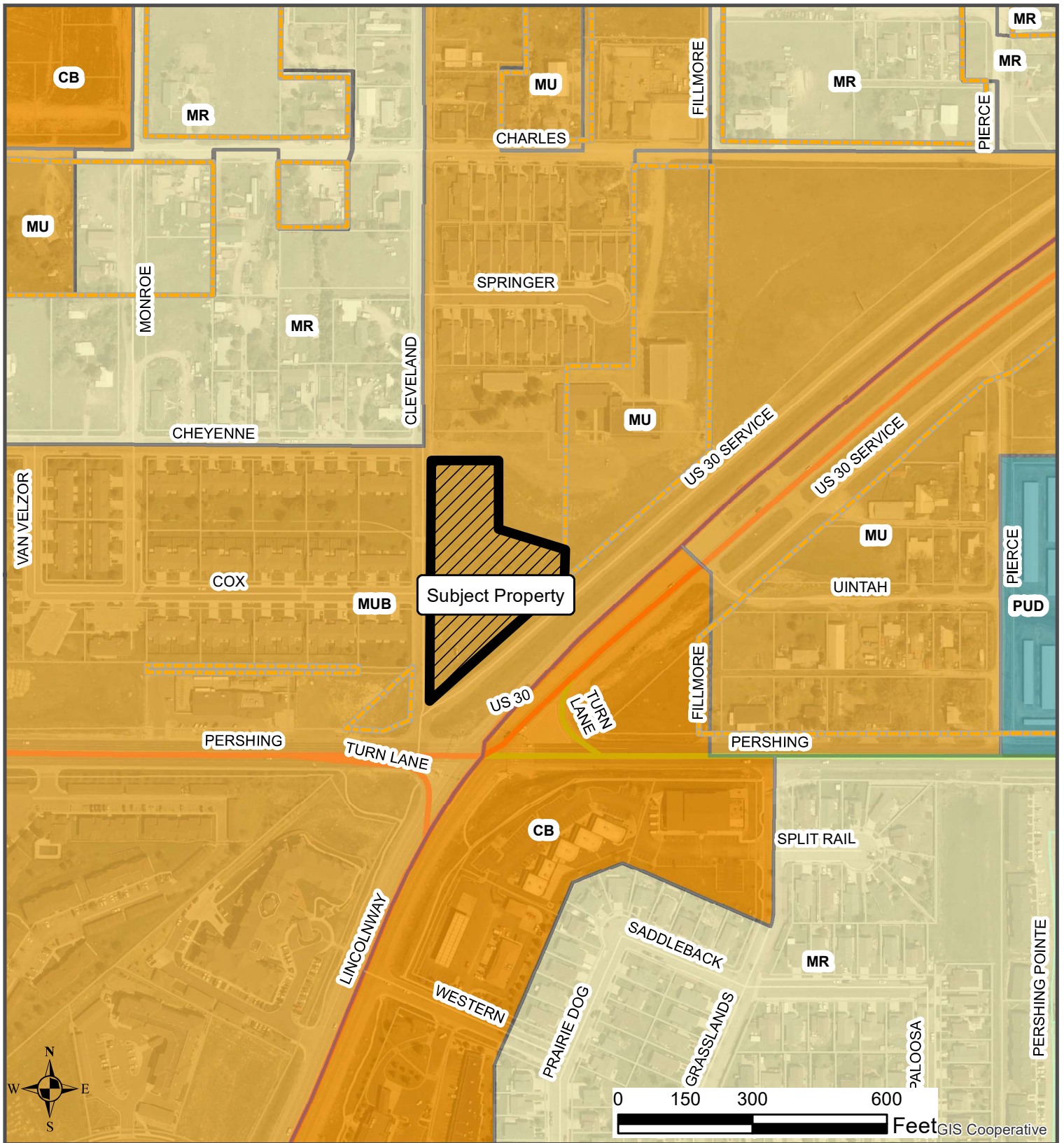
If the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

STAFF RECOMMENDATION:

Staff recommends approval of the rezoning of the property from MUB to CB.

ATTACHMENTS:

1. Current Zoning Map
2. (Current) Future Land Use Map
3. Application
4. Zone Change Map (from applicant)



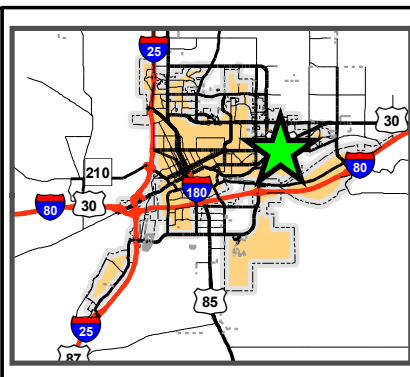
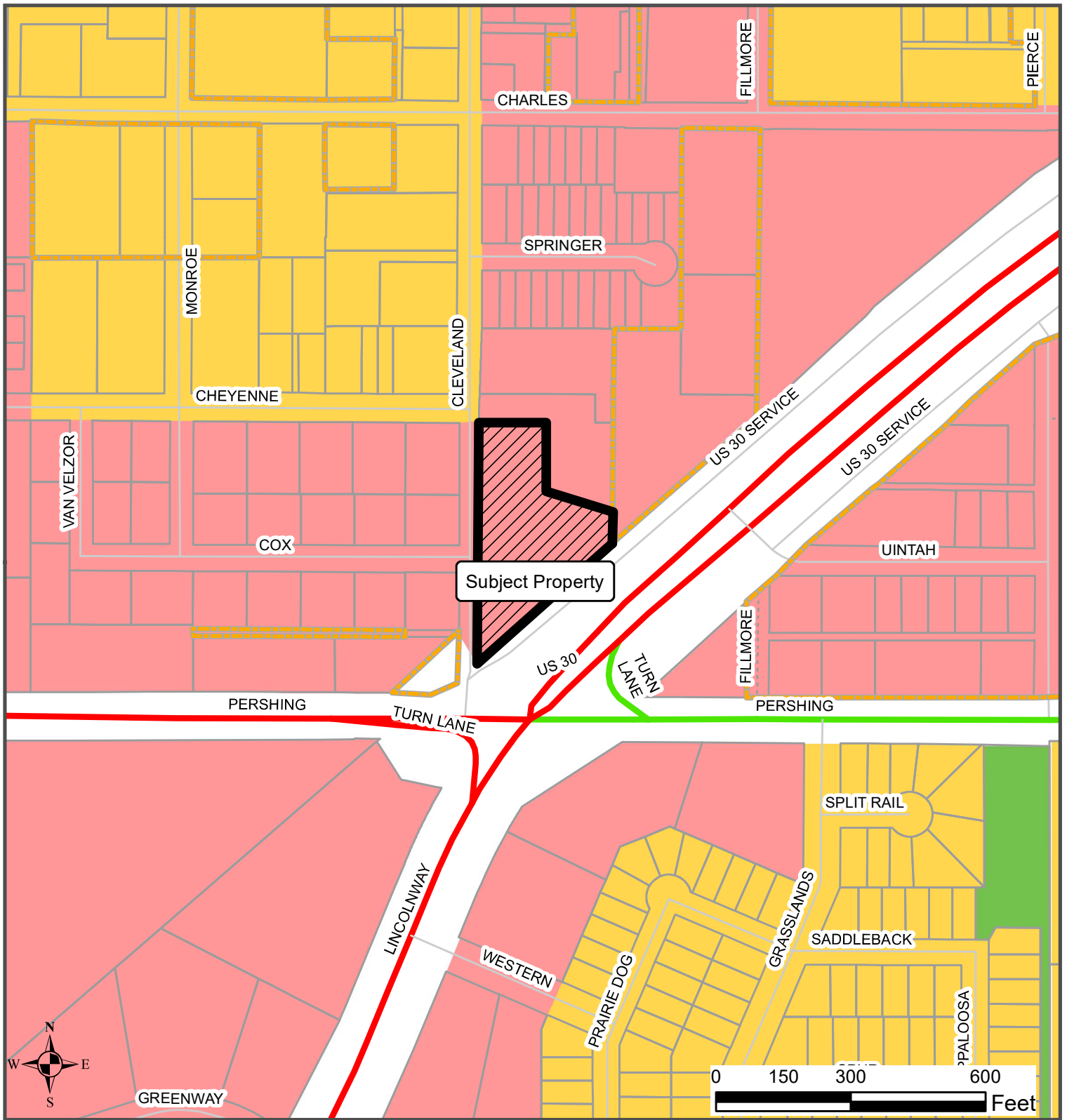
Attachment 1: Zoning Map PUDC-23-120

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

	Nov19_CityLimits		A-1 / Agricultural and Rural Residential
	Interstate		A-2 / Agricultural
	Principal Arterial		AG / City Agricultural
	Minor Arterial		MUR / Mixed Use Residential Emphasis
	Major Collector		CBD / Central Business District
	Minor Collector		CB / Community Business
	Local		NB / Neighborhood Business
	Private		MU / Mixed Use - County
	Platted not built		MUB / Mixed Use Business Emphasis
	HR / High Density Residential		MUE / Mixed Use Employment Emphasis
	MR / Medium Density Residential		HI / Heavy Industrial
	LR / Low Density Residential		LI / Light Industrial
	NR-2 / Neighborhood Residential - Med. Density		P / Public
	NR-3 / Neighborhood Residential - High Density		AD / Airport District
	AR / Agricultural Residential		PUD / Planned Unit Development
			X / Exempt

Feet GIS Cooperative



Attachment 2: Land Use Map PUDC-23-120

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Legend

Nov19_CityLimits	Agricultural/Rural	Industrial
Interstate	Rural Residential	Central Business District
Principal Arterial	Urban Transition Residential	Community Business
Minor Arterial	Urban Residential	Public and Quasi-Public
Major Collector	Mixed-Use Residential	Military/Federal
Minor Collector	Mixed-Use Commercial	Open Space and Parks
Local	Mixed-Use Employment	
Private		
Platted not built		
Ownership		



Cheyenne, WY

9/25/2023

PUDC-23-120

Zoning Map Amendment

Status: Active

Submitted On: 8/15/2023

Primary Location

0 CLEVELAND AVE

Cheyenne, WY 82001

Owner

RAMIREZ, DANIEL ET UX

5914 E 13TH ST CHEYENNE, WY 82001

Applicant

 Shane Hansen 307-634-7273 shansen@steilsurvey.com 1102 west 19th
Cheyenne, WY 82009

Application

Project Name*

SUNNYSIDE 10TH ZONE CHANGE

Proposed Zoning*

CB Community Business

Review Criteria

The following review criteria are found in the UDC regarding a zoning map amendment. Please acknowledge the proposed zoning map amendment meets each review criterion by checking the box.

The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan (2.2.1.d.1).*



The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas (2.2.1.d.2).*



The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (2.2.1.d.3).*



The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (2.2.1.d.4).*



The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards (2.2.1.d.5).*



The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval (2.2.1.d.6).*



The review and recommendations of other reviewing bodies (2.2.1.d.7). (Not applicable at time of application)

Whether the application will harm the public health, safety, or general welfare (2.2.1.d.8).*



Certification

I hereby certify that I am the owner, applicant, or agent named herein and that I have familiarized myself with the rules and regulations with respect to the filing of this application and that the foregoing statements and answers contained on this application and accompanying documents are true and accurate to the best of my knowledge.*



Micheal S Hansen

Aug 15, 2023

Attachments

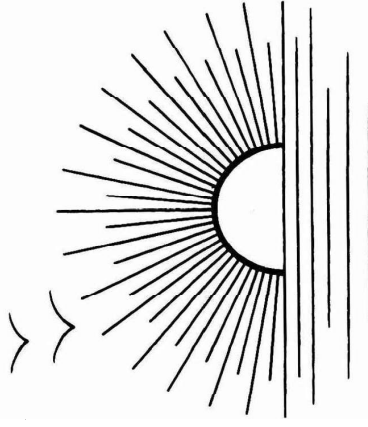
[illegible]

CERTIFICATE OF SURVEYOR

I, Jeffrey W. Jones, a Professional Surveyor in the State of Wyoming, do hereby certify that the foregoing is a true and correct copy of the original survey as shown on the attached plan, and that the monuments found or set are as shown.



EXISTING ZONING - MUB
PROPOSED ZONING - CB



ZONE CHANGE
EXHIBIT

FOR LOT 2, BLOCK 1,
SUNNYSIDE ADDITION TENTH FILING,
CITY OF CHEYENNE,
LARAMIE COUNTY, WYOMING

PREPARED August, 2023



STEIL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS
PLANNING & DEVELOPMENT SPECIALISTS
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www.steilsurvey.com • info@steilsurvey.com

REVISION: 06/15/2023
MREZ L3 B1 SUNNYSIDE 10TH/23TH ZONE CHANGE.dwg

CHEYENNE
STREET (60' R/W)

CLEVELAND AVENUE (50' R/W)

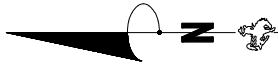
COX COURT (60'
R/W)

US HIGHWAY 30 SERVICE ROAD

LOT 1
(67,685 SQ.FT.
+/-)

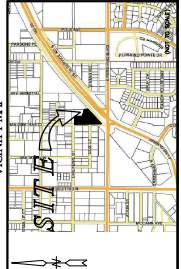
LOT 2
(20,240 SQ.FT.
+/-)

BLOCK
ONE



Scale: 1" = 30'

VICINITY MAP



FILING RECORD